

**WBSEDCL**

WEST BENGAL STATE ELECTRICITY DISTRIBUTION CO. LIMITED
(A Govt. of West Bengal Enterprise)
BIDYUT BHAVAN, SALT LAKE, KOLKATA-700 091

OFFICE ORDER NO-225

DATE - 07/12/09

In terms of office order no.98 dated 18.3.'09, clarification was issued to the effect that there would be no change in the date of increment of any employee even on promotion to a higher post carrying higher grade pay. Since the WBSEDCL(ROPA) Rules, 2009 has been given effect from 1.1.'06(notionally) fixation of pay on promotion to higher post with higher grade pay on or after 1.1.'06 is being/has been made as per guideline contained in the said order. Now, a question has arisen as to how the pay of an employee/officer, who got promotion at any time in the year 2005 and exercised option under Rule 13(1) of ROPA'90 for final fixation of his pay on promotion on the date of his next increment, would be fixed. Where the next date of his increment is on any day within the year 2005, there is/was no problem in getting their pay fixed in normal procedure. It is understood that the authorities dealing with pay fixation have been facing problem in such cases where the next date of increment falls on any day in the year 2006, as no clarification or guideline has been issued in dealing with such cases as to how such cases are to be dealt with.

Keeping in view all the aspects concerned to the issue, decision for fixation of pay of employees in such cases has been taken as below :-

"For the employees/officers, who got promotion any time in the year 2005 and also exercised option under Rule 13(1) of ROPA Rules 1990 for getting the next stage fixation w.e.f the joining date and the final promotional fixation w.e.f the date of their next increment related to the lower post falling due on any day in the year 2006, it is to be deemed that such option has not been exercised and their pay will notionally be refixed outright on the date of joining/effective date of promotion in 2005, as the case may be, in the usual manner on allowing one notional increment in the lower post and fixation on the same date in the unrevised scale of the promotional post. Accordingly, their pay under WBSEDCL (ROPA) Rules, 2009 will be fixed on 1.1.'06 in the corresponding scale of pay of the promotional post and they will be allowed increment in the same scale of promotional post on the normal due date of increment, as would have been due had they continued in lower post, not after one incremental period from the effective date of promotional fixation so made in 2005. No arrears of pay in the unrevised scale nor recovery of any excess drawal in the unrevised scale of pay, if any, will be made since such fixation in the unrevised scale of promotional post is to be made notionally from the date of his promotion. Such deemed fixation will have no effect on settlement of the terminal benefits like pension, gratuity, cash equivalent of leave salary of an employee, if retired upto 31.3.'07, so far it relates to his pay in the unrevised scale only."

WBSEDCL(ROPA) Rules, 2009 shall be deemed to have been amended to the extent indicated hereinbefore.

2(two) illustrations are also enclosed for guidance of all concerned (overleaf).

This has the approval of the Chairman & Managing Director.

Amita Guha
(A. Guha)
Director(HR)

Illustration-I

Mr. X drawing salary of Rs.16,500.00 in the scale of Rs.12,000-375-18,000 and his normal increment date is 1st day of next April. He was promoted to the post of Deputy Chief Engineer on 05.12.05 and corresponding scale was Rs.13,150-385-18,155. Mr. X joined as Deputy Chief Engineer on 05.12.05 and exercised option under Rule-13(1) of ROPA-1990. As a result of that his pay was earlier fixed as stage fixation at Rs.16,615.00 in the scale of Rs.13,150-385-18,155 from the date of joining of promotional post. Subsequently his promotional pay was fixed earlier on 01.04.06 as follows:-

Pay in scale of Rs.12,000-375-18,000	Rs.16,500.00
Add: normal Increment on 01.04.06	Rs. 375.00
Add: Notional Increment	<u>Rs. 375.00</u>
	<u>Rs.17,250.00</u>

Pay was fixed in the unrevised scale of Rs.13,150-385-18,155 from 01.04.2006 Rs.17,385.00

The deemed revised fixation will now be as follows:-

Pay in the scale of Rs.12,000-375-18,000 as on 05.12.05	Rs.16,500.00
Add: Notional Increment	<u>Rs. 375.00</u>
	<u>Rs.16,875.00</u>

Pay in the scale of Rs.13,150-385-18,155 from the date of joining(i.e. 05.12.05) will be Rs.17,000.00

His pay will be fixed in the revised ay as per ROPA-2009 will be as follows:-

Particulars	Pay in Pay Band	Grade Pay	Total
Pay as on 01.01.06-Rs.17,000.00	Rs.43,390.00	Rs.8,000.00	Rs.51,390.00
As on 01.04.06 – Increment	Rs.44,940.00	Rs.8,000.00	Rs.52,940.00

Illustration-II

Mr. Y, a Jr. Manager(P&A) while drawing his basic pay at Rs.8,100/- w.e.f. 01.9.2005(Inc.) in unrevised scale of Rs.5,500-10,075/- joined on 04.11.2005 in the promotional post of Asstt. Manager(P&A) in the scale of Rs.8,000-13,500/-(unrevised). He opted for his promotional fixation to be carried out w.e.f. 01.09.2006(his next incremental date of the lower post) in terms of rule 13(1) of ROPA'90.

1. Fixation earlier made in unrevised scale

Pay fixed at Rs.8,275/- w.e.f. 04.11.2005, in the scale of Rs.8,000-13,500/-(stage fixation w.e.f. date of joining on promotion).

Pay fixed at Rs.8,825/- w.e.f. 01.09.06 in the scale of Rs.8,000-13,500/-(final fixation w.e.f. the date of next increment of lower post).

2. Deemed revised fixation will be as follows:-

Pay drawn at Rs.8,100/- w.e.f. 01.09.2005(Inc.) in unrevised Scale of Rs.5,500-10,075/- as Junior Manager(P&A). Pay fixed in the Promotional post in unrevised scale of Pay of Rs.8,000-13,500/- w.e.f. 04.11.2005 at Rs.8,550/- outright in usual manner. Next date of increment would be 01.09.06 when his Pay would be raised to Rs.8,825/- in the unrevised scale of Rs.8,000-13,500/-.

His Pay will now be fixed under ROPA-2009 as below:-

Pay in unrevised scale	Pay in revised scale	Grade Pay	Total
01.01.06 - Rs.8,550/-	Rs.15,910/-	Rs.5,400/-	Rs.21,310/-
As on 01.09.06	Rs.16,550/-	Rs.5,400/-	Rs.21,950/-

Anirban Guha
(Anirban Guha) 7/12/09
Director(H.R.)